

MOUR – TERMS OF SERVICE Final Version

Effective Date: [Insert Date] Governing Entity: MOUR, Inc., a Delaware corporation

IMPORTANT NOTICE BY USING THE MOUR PLATFORM, YOU AGREE TO THESE TERMS OF SERVICE.

1. THE PLATFORM AND OUR ROLE

MOUR is a technology platform only. MOUR does not control, direct, or supervise the work performed by Eyes. MOUR has no responsibility or liability for the actions or content of any user.

2. INDEPENDENT CONTRACTOR STATUS

Every Eye is an independent contractor. Eyes control their own methods, schedule, and whether they accept any job. MOUR does not require Eyes to accept any minimum number of jobs or work any set hours.

3. JOB ASSIGNMENT – FIRST-COME, FIRST-SERVED

Jobs are awarded on a first-come, first-served basis. The first Eye to accept an available job receives the assignment.

If an accepted job is not completed within the allotted time set by the platform, the job will automatically become available again for other Eyes to accept. Acceptance of any job is voluntary. Eyes are free to decline any job.

4. EYE FULL LIABILITY ACKNOWLEDGMENT

By accepting any job, every Eye agrees to the following:

1. I am an independent contractor and not an employee or agent of MOUR.
2. I am 100% responsible for obtaining valid consent from every person appearing in any media I capture.
3. I will never knowingly film or record anyone under the age of 18 or engage in any illegal activity.
4. I am solely and fully responsible for everything I photograph, record, or livestream.
5. I am 100% responsible for verifying the identity and age of every person I film.
6. I am 100% responsible for complying with all applicable laws.
7. MOUR has zero responsibility or liability for my actions or the media I create.

8. I release MOUR from any and all claims arising from my activities.
9. I accept full personal liability for any legal issues resulting from the media I capture.

Every Eye must scroll to the bottom and sign this acknowledgment before accepting a job.

5. MEDIA CONSENT REQUIREMENTS

Eyes must obtain and upload a valid signed Media Consent & Release Form with ID verification for every recognizable person before completing a job.

6. ASSUMPTION OF RISK AND RELEASE

You use the Platform at your own risk. You release MOUR from all liability related to user content, consent, and conduct.

7. LIMITATION OF LIABILITY

MOUR's total liability shall not exceed the greater of \$100 or the fees you paid in the prior 12 months.

8. DISPUTE RESOLUTION

All disputes shall be resolved through binding individual arbitration in Delaware under the Federal Arbitration Act. Class actions are waived.

9. GOVERNING LAW

These Terms are governed by the laws of the State of Delaware.

10. PROHIBITED ACTIVITIES

Eyes and Requesters may not use the platform for illegal activity or to film minors. Violation results in termination and full assumption of liability by the user.

11. INDEMNIFICATION

You agree to indemnify and hold MOUR harmless from claims arising from your use of the platform.

12. ENTIRE AGREEMENT

These Terms constitute the entire agreement between you and MOUR.

End of Terms of Service